



Australian Government
Department of Health and Aged Care
Therapeutic Goods Administration

Your reference: MR22/00538
Agency reference: FOI 3643 | LEX 26100

[REDACTED]
Intake and Early Resolution Team
Office of the Australian Information Commissioner

By email: foidr@oaic.gov.au

Dear [REDACTED]

Subject: IC review of decision to refuse request for access to documents requested by Mr Paul Rekaris

1. We refer to Information Commission review application by Mr Paul Rekaris (**applicant**) in relation to the access refusal decision (**Refusal Decision**) made by Ms Elspeth Kay (**the Decision Maker**) of the Therapeutic Goods Administration (**TGA**) which is part of the Department of Health and Aged Care (**Department**) on 27 February 2022 under the *Freedom of Information Act 1982* (**FOI Act**).
2. On 21 July 2022 you requested that the Department provide, by 11 August 2022, certain relevant information and documents outlined in paragraph 10.100 of the FOI Guidelines issued under s 93A of the FOI Act.
3. We set out below our response in relation to the relevant information and documents requested.

The FOI request, and any correspondence that modifies its scope

4. Please find the FOI request **enclosed** at **Attachment A**, in which the applicant requested the following:

"an implementation report on the Covid 19 Vaccine Safety Monitoring Plan as per the key objectives listed in the plan:

1. *timely collection and management of reports of COVID-19 vaccine adverse events following immunisation*
2. *timely detection and investigation of COVID-19 vaccine safety signals*
3. *timely action to address any COVID-19 vaccine safety concerns*
4. *timely communications to inform the public of emerging COVID-19 vaccine safety information and to support public confidence in vaccines*

5. *close collaboration and coordination of effort with other vaccine safety stakeholder groups.*

I specifically request a specific report outlining progress of key outputs, outcomes and timelines as per the above objectives."

6. The scope of the FOI request was not modified, such that there is no correspondence to that effect.

A copy of any document that records searches conducted

7. Please find **enclosed** at **Attachment B** correspondence between the FOI decision maker and individuals who conducted searches. As you will see, the decision maker confirmed that no "implementation report" of the type described by the applicant exists. For the reasons set out below, it was considered unnecessary to undertake further searches on that basis. As such, there are no notes kept by individuals conducting searches, nor any other records of searches or recorded consideration of where to search.

Any other relevant information that the agency or minister wishes to provide in support of its decision

8. The Decision Maker is the Assistant Secretary of the Pharmacovigilance Branch within the Medicines Regulation Division.
9. The Pharmacovigilance Branch is responsible for overseeing medicines and vaccines to ensure they maintain an appropriate level of quality, safety and efficacy following entry into the Australian marketplace. At the time of the request, the branch included:
 - a. the Vaccine Epidemiology and Rapid Assessment Section, which monitored and investigated the safety of COVID-19 vaccines; and
 - b. the Medicines and Vaccines Investigation and Surveillance Section, which monitors and investigates the safety of vaccines (and other goods) following entry into the Australian Register of Therapeutic Goods. This includes conducting regular reviews and analysis of adverse drug reaction data that has been entered into the Adverse Event Management System database, to look for potential new safety signals. The section also receives and investigates notifications of new safety signals and responds to enquiries about pharmacovigilance and the safety of medicines from consumers, health professionals and sponsors.
10. Accordingly, any "*implementation report on the Covid 19 Vaccine Safety Monitoring Plan*" (being the document requested by the applicant) would necessarily be prepared by the Pharmacovigilance Branch at the direction (and under the purview of) the Decision Maker.
11. As such, the Decision Maker is uniquely placed to confirm that the document requested by the applicant does not exist, and to make the Refusal Decision on that basis.
12. We note for completeness that the Decision Maker explained in the Refusal Decision that "[w]hile the TGA continues to monitor the progress of the five objectives listed in your request and has ample documentation demonstrating compliance in those objectives, the TGA does not have a single, specific evaluation report outlining progress."

The Decision Maker also directed the applicant to publicly available information relating to the request.

13. We note that it would be open to the applicant to be guided by the information in the Refusal Decision to make a new request under the FOI Act for information or documents that exist.
14. Please do not hesitate to contact Ms Kate Mitchell on (02) 6289 7813 or at [REDACTED] should you wish to discuss this matter.

Yours sincerely

[REDACTED]

Principal Lawyer
Regulatory Legal Services Branch

28 July 2022

From: [Paul](#)
To: [TGA FOI](#)
Subject: FOI Request: Covid 19 Vaccine Safety Monitoring Plan (implementation report)
Date: Friday, 18 February 2022 11:20:20 AM

REMINDER: Think before you click! This email originated from outside our organisation. Only click links or open attachments if you recognise the sender and know the content is safe.

Dear FOI Officer,

The request is for the purposes of the FOI Act.

I request an implementation report on the Covid 19 Vaccine Safety Monitoring Plan as per the key objectives listed in the plan:

1. timely collection and management of reports of COVID-19 vaccine adverse events following immunisation
2. timely detection and investigation of COVID-19 vaccine safety signals
3. timely action to address any COVID-19 vaccine safety concerns
4. timely communications to inform the public of emerging COVID-19 vaccine safety information and to support public confidence in vaccines
5. close collaboration and coordination of effort with other vaccine safety stakeholder groups.

I specifically request a specific report outlining progress of key outputs, outcomes and timelines as per the above objectives.

Please send the information to paulrekaris@gmail.com

Yours faithfully,

Paul Rekaris

From: [REDACTED]
To: [TGA FOI](#)
Cc: [PSAB Co-ord Inbox](#)
Subject: RE: FOI Request: Covid 19 Vaccine Safety Monitoring Plan (implementation report) [SEC=OFFICIAL]
Date: Wednesday, 23 February 2022 4:25:47 PM
Attachments: [image002.png](#)

[REDACTED]

We do not have an 'implementation report' on the COVID-19 vaccine safety monitoring plan, which I take to mean an evaluation report on whether we have achieved the goals set out in the plan. At the time we were setting up the monitoring systems for COVID vaccines back in 2020 we maintained a register of risks/outstanding tasks but I think this is not consistent with what he is looking for. We would of course have ample documents demonstrating things we have done that correspond to each of the objectives of the plan, but we don't have 'a specific report outlining progress...etc' – we are just entering a phase of reviewing and identifying lessons now.

Happy to discuss

Kind regards

[REDACTED]

From: TGA FOI <TGAFOI@health.gov.au>
Sent: Wednesday, 23 February 2022 3:13 PM
To: [REDACTED]
Cc: TGA FOI <TGAFOI@health.gov.au>; PSAB Co-ord Inbox <PSABcoord@Health.gov.au>
Subject: FW: FOI Request: Covid 19 Vaccine Safety Monitoring Plan (implementation report) [SEC=OFFICIAL]

Dear [REDACTED]

The TGA has received a new FOI request from Paul Rekaris who requested the following:

I request an implementation report on the Covid 19 Vaccine Safety Monitoring Plan as per the key objectives listed in the plan:

- 1. timely collection and management of reports of COVID-19 vaccine adverse events following immunisation*
- 2. timely detection and investigation of COVID-19 vaccine safety signals*
- 3. timely action to address any COVID-19 vaccine safety concerns*
- 4. timely communications to inform the public of emerging COVID-19 vaccine safety information and to support public confidence in vaccines*
- 5. close collaboration and coordination of effort with other vaccine safety stakeholder groups*

I specifically request a specific report outlining progress of key outputs, outcomes and timelines as per the above objectives.

Could you please advise if PB holds any documents related to the implementation of the Covid

19 Vaccine Safety Monitoring Plan?

If so, could you please confirm:

- What the estimated volume of these documents is (noting that as always, an estimated volume and sample of the documents will suffice if the number of documents is too voluminous to process), and
- Whether the release of these documents would involve releasing sensitive or commercially valuable information, and would require third party consultation.
- Additionally, please advise if there are other areas of the TGA that may also hold relevant documents.

We would be very grateful if you could please respond by **COB Friday 25 February** if possible.

Thank you in advance for your assistance.

Please feel free to contact the FOI team if you have any questions.

Kindest regards

[Redacted signature]

[Redacted signature]

[Redacted signature]

HPRG Regulatory Information Access

Health Products Regulation Group | Regulatory Engagement Branch
Reporting and Collaboration Services Section
Australian Government Department of Health

02 6289 2641 | 02 6289 3332 | 02 6289 3394 | 02 6289 5409

FOI Hotline: 02 6289 4630

E: TGAFOI@health.gov.au

Location: Symonston, GE26 | PO Box 100, Woden ACT 2606, Australia

The Department of Health acknowledges the Traditional Custodians of Australia and their continued connection to land, sea and community. We pay our respects to all Elders past and present.

From: Paul <paulrekaris@gmail.com>

Sent: Friday, 18 February 2022 11:20 AM

To: TGA FOI <TGAFOI@health.gov.au>

Subject: FOI Request: Covid 19 Vaccine Safety Monitoring Plan (implementation report)

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Paul Rekaris